

JUSTIFICATION AND APPROVAL OTHER THAN FULL AND OPEN COMPETITION

1. Identification of the agency and the contracting activity.

This justification is executed by the Naval Medical Research Command (NMRC), Silver Spring, MD, on behalf of the Navy to meet Navy Expeditionary Medical Research requirements.

The Naval Infectious Diseases Diagnostic Laboratory (NIDDL) is located at NMRC in Building 503. The lab is located in 3N60.

2. Nature and/or description of the action.

This requirement is for a drop shipment of BioFire supplies needed or BioFire Global Fever Special Pathogens Panel, Warrior Panel and Respiratory Panel assay testing.

3. Description of Supplies or Services:

This requirement is for a drop shipment of BioFire supplies needed or BioFire Global Fever Special Pathogens Panel, Warrior Panel and Respiratory Panel assay testing. This requirement is set up for shipment to receive three Respiratory Panel 2.1 kits of 30 tests (90 tests) every six months, for a total of 180 tests; one Warrior Panel Kit of 30 tests (30 tests) every six months, for a total of 60 tests; and five Global Fever Special Pathogens Panel kits of 6 tests (30 tests) every three months, for a total of 120 tests. In total, this requirement will include the capability 360 individual multiplex tests per 12-month period. Additionally, the shipment will include one BioFire Global Fever Special Pathogens Panel Control kit every six months (2 kits) for lot-to-lot variation testing. Additionally, this requirement will include a base year contract with 2 options years, with consistent pricing across all years.



4. Identification of the statutory exceptions permitting other than full and open competition.

The statutory exception permitting other than full and open competition for this acquisition is *10 U.S.C. 2304(c)(1), Only one responsible source. And FAR 13.106-1(b)(1) <\$150K*

Items are available through GSA at the same price through the same company, but we would not be able to set up a drop shipment or have option years through GSA.

5. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

While these items are available on GSA for the same price estimated, this company is the only one in which we can organize a drop shipment and offer option years. A drop shipment of

supplies is necessary to guarantee the stability of ordering and ensure that the NIDDL can provide diagnostic care to military members and DoD beneficiaries, without interruption. The drop shipment proposed would ensure the appropriate number of tests needed to run the BioFire Global Fever Special Pathogens Panel, Warrior Panel and Respiratory Panel assays while reducing the chance of reagent expiration and minimizing storage issues. Additionally, the contract will include a base year plus 2 option years, with the 12-month contract total being equal across all base and option years, increasing savings over time.

6. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable.

These items are only available through BioFire and through GSA. While current GSA prices are the same as what is offered by BioFire Defense for this contract, this only applies to current pricing. Initiating the contract through BioFire would not only lock in these prices for the rest of the proposed shipments (through March 2026) but would also increase the savings of inflation by utilizing the two provided option years, ensuring shipments through March 2028.

Additionally, a drop shipment of supplies is necessary to guarantee the stability of ordering and ensure that the NIDDL can provide diagnostic care to military members and DoD beneficiaries, without interruption. Drop shipments are not possible through GSA.

7. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer shall determine the anticipated cost to the Government of the supplies/services covered by this Justification and Approval will be fair and reasonable by conducting a price analysis before an award is made. In addition, the Government anticipates that the negotiated contract price will reflect a discount from the BioFire Defense's commercial price list and will be determined fair and reasonable.

8. Description of the market survey conducted and the results, or a statement of the reasons a market survey was not conducted.

Research was done by internet and contacting vendors to get the estimate and checking GSA.

9. Other facts supporting the use of other than full and open competition.

If other suitable vendor(s) became available, a full and open competition may be considered.

10. Listing of Sources, if any, which expressed, in writing, an interest in the acquisition.

To date, no other sources have written to express an interest. Any sources expressing interest in response to the synopsis will receive consideration.

11. Statement of actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

Future requirements will be synopsized in accordance with FAR 5.203. For the reasons set forth in Paragraph 5, NMRC has no plans at this time to compete future contracts for the types of

supplies/services covered by this document. If another potential source emerges, NMRC will assess whether competition for future requirements are feasible.

12. Point of Contact:

The point of contact at the Naval Medical Research Command, Silver Spring, MD, regarding the contents of the sole source justification are the Contracting Officers in the Material Management Department (MMD) and can be reached by emailing usn.detrick.nmrc.mbx.mmd-contracts@health.mil.

TECHNICAL AND REQUIREMENTS CERTIFICATION REQUIRED BY NAVSUP 4200.83 series

I certify that the facts and representations under my cognizance which are included in this justification and approval and which form a basis for this justification are complete and accurate.

Technical Cognizance

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1 May 2025

Name

Phone

Date

Title

Department/Command

Requirements Cognizance

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CONTRACTING OFFICER CERTIFICATION

I certify that this justification is accurate and complete to the best of my knowledge.

CARTER.SHAMAI.M.16
24726649

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Contracting Officer

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